

CV-24-004931 MONDRAGON, ERIKA vs CENTRAL CALIFORNIA CHILD DEVELOPMENT SERVICES INC – a) Plaintiff’s Motion to Compel Defendant Central California Child Development Services, Inc.’s Further Responses to Request for Production (Set One); Request for Monetary Sanctions in the Amount of \$13,426.83 – DENIED; b) Plaintiff’s Motion to Compel Defendant Central California Child Development Services, Inc.’s Further Responses to Special Interrogatories (Set One); Request for Monetary Sanctions in the Amount of \$13,426.83 – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) DENIED Plaintiff originally filed the present motion on August 28, 2025. Thereafter, Defendant served further verified supplemental responses, including Second Supplemental Responses on March 12, 2026. The parties subsequently agreed in writing to extend Plaintiff's deadline to bring a motion directed to the supplemental responses through June 29, 2026. According to Defendant's opposition, Plaintiff did not file or notice a motion directed to the Second Supplemental Responses by that date. Code of Civil Procedure section 2031.310(c) provides: "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." The statute therefore expressly ties the deadline to a verified response or "any supplemental verified response" and permits the parties to substitute a specific later date by written agreement. The 45-day statutory period governing motions to compel further responses is mandatory. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1409-1410.) In Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, the Court of Appeal likewise treated the statutory deadline as running upon the operative verified response, holding in the circumstances presented there that responses containing substantive answers and objections did not trigger the period until verification was supplied. Here, Plaintiff's August 28, 2025, motion necessarily was directed to Defendant's responses existing when that motion was filed. Defendant's Second Supplemental Responses were not served until March 12, 2026. Consequently, the original motion could not have identified deficiencies in those later responses or given Defendant notice of a request for an order compelling further responses to them. Defendant represents that although the parties extended the deadline for a motion challenging the supplemental responses to June 29, 2026, Plaintiff did not timely notice and file such a motion. The Court is not persuaded that the August 28, 2025 motion may operate as a continuing or open-ended vehicle through which Plaintiff may challenge subsequently served supplemental responses. Section 2031.310(c)'s express reference to "any supplemental verified response" is inconsistent with such a construction. Absent timely notice of a motion challenging the March 12, 2026, Second Supplemental Responses within the statutory period, as extended by the parties' written agreement, Plaintiff waived the right to compel further responses to those responses. In addition, the defect may not be cured by raising alleged deficiencies in the Second Supplemental Responses through later-filed papers associated with the original motion. Defendant's opposition asserts that no new notice of motion identifying those responses and seeking further responses to them was served before expiration of the June 29, 2026 agreed upon deadline, and Plaintiff does not dispute this. An additional procedural problem exists in that California Rules of Court, rule 3.1345(c) requires a separate statement supporting a motion to compel further responses to identify not merely the discovery request and original response, but also any further responses or answers and the factual and legal reasons for compelling further responses. Adjudicating the adequacy of superseded responses while operative supplemental responses have subsequently been served would not properly frame the discovery dispute presently before the Court. Further, a motion to compel further responses to an inspection demand must be accompanied by a meet-and-confer declaration demonstrating a reasonable and good-faith attempt at informal resolution. (Code Civ. Proc., §§ 2016.040, 2031.310(b)(2).) Section 2031.310 expressly imposes that requirement. Plaintiff asserts a meet and confer on July 13, 2026. Even if this were meaningful meet and confer the claimed deficiencies in the Second Supplemental Responses are not at issue as the motion is currently framed. Accordingly, to the extent the original motion seeks further responses to responses subsequently superseded by Defendant's supplemental responses, the motion does not provide a basis for further relief. To the extent Plaintiff now seeks to compel further responses to Defendant's March 12, 2026, Second Supplemental Responses, Plaintiff failed to timely notice a motion directed to those responses within the deadline established by section 2031.310(c), as extended by agreement of the parties to June 29, 2026. The motion is therefore DENIED. The Court does not reach the merits of the parties' dispute concerning

the substantive sufficiency of Defendant's Second Supplemental Responses, for which a motion is now time-barred. Because the motion is denied on the grounds stated above, the Court need not determine whether the alleged lack of notice of the September 28, 2026, hearing constitutes an independent basis for denial. Plaintiff's request for monetary sanctions is denied. Defendant's request for monetary sanctions is granted in the reduced amount of \$2,200.00 against plaintiff's counsel Svetlana Hovhannisan pursuant to Code Civ. Proc. Section 2031.310(h). The Court finds that plaintiff's counsel did not act with substantial justification in continuing to prosecute this motion after supplemental responses were served or in presenting arguments in the Reply concerning those supplemental responses. The sanctions are to be paid to defense counsel Russell K. Ryan within 30 days. b) DENIED. Plaintiff originally filed the present motion on August 28, 2025. Thereafter, Defendant served further verified supplemental responses, including Second Supplemental Responses on March 12, 2026. The parties subsequently agreed in writing to extend Plaintiff's deadline to bring a motion directed to the supplemental responses through June 29, 2026. According to Defendant's opposition, Plaintiff did not file or notice a motion directed to the Second Supplemental Responses by that date. Code of Civil Procedure section 2030.300(c) provides: "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." The statute therefore expressly ties the deadline to a verified response or "any supplemental verified response" and permits the parties to substitute a specific later date by written agreement. The 45-day statutory period governing motions to compel further responses is mandatory. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1409-1410.) In Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, the Court of Appeal likewise treated the statutory deadline as running upon the operative verified response, holding in the circumstances presented there that responses containing substantive answers and objections did not trigger the period until verification was supplied. Here, Plaintiff's August 28, 2025, motion necessarily was directed to Defendant's responses existing when that motion was filed. Defendant's Second Supplemental Responses were not served until March 12, 2026. Consequently, the original motion could not have identified deficiencies in those later responses or given Defendant notice of a request for an order compelling further responses to them. Defendant represents that although the parties extended the deadline for a motion challenging the supplemental responses to June 29, 2026, Plaintiff did not timely notice and file such a motion. The Court is not persuaded that the August 28, 2025, motion may operate as a continuing or open-ended vehicle through which Plaintiff may challenge subsequently served supplemental responses. Section 2030.300(c)'s express reference to "any supplemental verified response" is inconsistent with such a construction. Absent timely notice of a motion challenging the March 12, 2026, Second Supplemental Responses within the statutory period, as extended by the parties' written agreement, Plaintiff waived the right to compel further responses to those responses. In addition, the defect may not be cured by raising alleged deficiencies in the Second Supplemental Responses through later-filed papers associated with the original motion. Defendant's opposition asserts that no new notice of motion identifying those responses and seeking further responses to them was served before expiration of the June 29, 2026, agreed deadline and Plaintiff does not dispute this. An additional procedural problem exists in that California Rules of Court, rule 3.1345(c) requires a separate statement supporting a motion to compel further responses to identify not merely the discovery request and original response, but also any further responses or answers and the factual and legal reasons for compelling further responses. Adjudicating the adequacy of superseded responses while operative supplemental responses have subsequently been served would not properly frame the discovery dispute presently before the Court. Further, a motion to compel further responses to an interrogatory demand must be accompanied by a meet-and-confer declaration demonstrating a reasonable and good-faith attempt at informal resolution. (Code Civ. Proc., §§ 2016.040, 2001.300(b)(1).) Section 2030.300 expressly imposes that requirement. Plaintiff asserts a meet and confer on July 13, 2026. Even if this were meaningful meet and confer, the claimed deficiencies in the Second Supplemental Responses are not at issue as the motion is currently framed. Accordingly, to the extent the original motion seeks further responses to responses subsequently superseded by Defendant's supplemental responses, the motion does not provide a basis for further relief. To the extent Plaintiff now seeks to compel further responses to Defendant's March 12, 2026, Second Supplemental Responses, Plaintiff failed to timely notice a motion directed to those responses within the deadline established by section 2031.310(c), as extended by agreement of the parties to June 29, 2026. The motion is therefore DENIED. The Court does not reach the merits of the parties' dispute concerning the substantive sufficiency of Defendant's Second Supplemental Responses, for which a motion is now time-barred. Because the motion is denied on the grounds stated above, the Court need not determine whether the alleged lack of notice of the September 28, 2026, hearing constitutes an independent basis for denial. Plaintiff's request for sanctions is denied. Defendant's request for monetary sanctions is granted in the amount of \$2,750.00 against plaintiff's counsel Svetlana Hovhannisan pursuant to Code Civ. Proc. Section 2030.300(d). The Court finds that plaintiff's counsel did not act with substantial justification in continuing to prosecute this motion after supplemental responses were served or in presenting arguments in the Reply concerning those supplemental responses. The sanctions are to be paid to defense counsel Russell K. Ryan within 30 days. The following are the tentative rulings for cases calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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a) DENIED

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Code of Civil Procedure section 2031.310(c) provides:

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand."

The statute therefore expressly ties the deadline to a verified response or "any supplemental verified response" and permits the parties to substitute a specific later date by written agreement.

The 45-day statutory period governing motions to compel further responses is mandatory. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410.) In *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, the Court of Appeal likewise treated the statutory deadline as running upon the operative verified response, holding in the circumstances presented there that responses containing substantive answers and objections did not trigger the period until verification was supplied.

Here, Plaintiff's August 28, 2025, motion necessarily was directed to Defendant's responses existing when that motion was filed. Defendant's Second Supplemental Responses were not served until March 12, 2026. Consequently, the original motion could not have identified deficiencies in those later responses or given Defendant notice of a request for an order compelling further responses to them. Defendant represents that although the parties extended the deadline for a motion challenging the supplemental responses to June 29, 2026, Plaintiff did not timely notice and file such a motion.

The Court is not persuaded that the August 28, 2025 motion may operate as a continuing or open-ended vehicle through which Plaintiff may challenge subsequently served supplemental responses. Section 2031.310(c)'s express reference to "any supplemental verified response" is inconsistent with such a construction. Absent timely notice of a motion challenging the March 12, 2026, Second Supplemental Responses within the statutory period, as extended by the parties' written agreement, Plaintiff waived the right to compel further responses to those responses.

In addition, the defect may not be cured by raising alleged deficiencies in the Second Supplemental Responses through later-filed papers associated with the original motion. Defendant's opposition asserts that no new notice of motion identifying those responses and seeking further responses to them was served before expiration of the June 29, 2026 agreed upon deadline, and Plaintiff does not dispute this.

An additional procedural problem exists in that California Rules of Court, rule 3.1345(c) requires a separate statement supporting a motion to compel further responses to identify not merely the discovery request and original response, but also any further responses or answers and the factual and legal reasons for compelling further responses. Adjudicating the adequacy of superseded responses while operative supplemental responses have subsequently been served would not properly frame the discovery dispute presently before the Court.

Further, a motion to compel further responses to an inspection demand must be accompanied by a meet-and-confer declaration demonstrating a reasonable and good-faith attempt at informal resolution. (Code Civ. Proc., §§ 2016.040, 2031.310(b)(2).) Section 2031.310 expressly imposes that requirement. Plaintiff asserts a meet and confer on July 13, 2026. Even if this were meaningful meet and confer the claimed deficiencies in the Second Supplemental Responses are not at issue as the motion is currently framed.

Accordingly, to the extent the original motion seeks further responses to responses subsequently superseded by Defendant's supplemental responses, the motion does not provide a basis for further relief. To the extent Plaintiff now seeks to compel further responses to Defendant's March 12, 2026, Second Supplemental Responses, Plaintiff failed to timely notice a motion directed to those responses within the deadline established by section 2031.310(c), as extended by agreement of the parties to June 29, 2026.

The motion is therefore DENIED.

The Court does not reach the merits of the parties' dispute concerning the substantive sufficiency of Defendant's Second Supplemental Responses, for which a motion is now time-barred.

Because the motion is denied on the grounds stated above, the Court need not determine whether the alleged lack of notice of the September 28, 2026, hearing constitutes an independent basis for denial.

Plaintiff's request for monetary sanctions is denied.

Defendant's request for monetary sanctions is granted in the reduced amount of \$2,200.00 against plaintiff's counsel Svetlana Hovhannisan pursuant to Code Civ. Proc. Section 2031.310(h). The Court finds that plaintiff's counsel did not act with substantial justification in continuing to prosecute this motion after supplemental responses were served or in presenting arguments in the Reply concerning those supplemental responses. The sanctions are to be paid to defense counsel Russell K. Ryan within 30 days.

b) DENIED.

Plaintiff originally filed the present motion on August 28, 2025. Thereafter, Defendant served further verified supplemental responses, including Second Supplemental Responses on March 12, 2026. The parties subsequently agreed in writing to extend Plaintiff's deadline to bring a motion directed to the supplemental responses through June 29, 2026. According to Defendant's opposition, Plaintiff did not file or notice a motion directed to the Second Supplemental Responses by that date.

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The following are the tentative rulings for cases calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

There are no tentative rulings in Department 19

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